

The U.P. Food Safety and Drug Administration Department Analysts (Food And Drug Laboratory) Service Rules, 2017

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State of Uttar Pradesh - Act

The U.P. Food Safety and Drug Administration Department Analysts (Food And Drug Laboratory) Service Rules, 2017

UTTAR PRADESH

India

The U.P. Food Safety and Drug Administration Department Analysts (Food And Drug Laboratory) Service Rules, 2017

Rule

THE-U-P-FOOD-SAFETY-AND-DRUG-ADMINISTRATION-DEPARTMENT-ANALYSTS-FOOD-AND-DRUG-LABORATORY-SERVICE-RULES-2017 of 2017

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The U.P. Food Safety and Drug Administration Department Analysts (Food And Drug Laboratory) Service Rules, 2017

Published vide Notification No. 76/2017/3135/88-2017-99AU.-09, dated 19.12.2017

76.

/2017/3135/LXXXVIII-2017-99AU.-09. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution and in supersession of all existing rules and orders on the subject, the Governor is pleased to make the following rules regulating recruitment and the conditions of service of persons appointed to the Uttar Pradesh Food Safety and Drug Administration Department Analysts (Food and Drug Laboratory) Service:

Part I

General

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Food Safety and Drug Administration Department Analysts (Food And Drug Laboratory) Service Rules, 2017.

(2)

They shall come into force at once.

2.

Status of the Service.

- The Uttar Pradesh Food Safety and Drug Administration Department Analysts (Food And Drug Laboratory) Service is a service comprising Group "A", Group "B" and Group "C" Posts.

3.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context:

(a)

"Act" means the Uttar Pradesh Public Services (Reservation for Scheduled Castes, Scheduled Tribes and Other Backward Classes) Act, 1994;

(b)

"appointing authority" in respect of the posts of Joint Commissioner/Chief Government Public Analyst, Scientific Officer-I (Food), Scientific Officer-I (Drug), Scientific Officer-II (Food) and Scientific Officer-11 (Drug) means the Governor and for the remaining posts in the service means the Commissioner, Food Safety and Drug Administration Department, Uttar Pradesh;

(c)

"citizen of India" means a person who is or is deemed to be a citizen of India under Part II of the Constitution;

(d)

"Commission" means the Uttar Pradesh Public Service Commission;

(e)

"Constitution" means the Constitution of India;

(f)

"Government" means the State Government of Uttar Pradesh;

(g)

"Governor" means the Governor of Uttar Pradesh;

(h)

"member of the service" means a person substantively appointed under these rules or the rules or orders in force prior to the commencement of these rules to a post in the cadre of the Service;

(i)

"other backward classes of citizens" means the backward classes of citizens specified in Schedule I of the Act as amended from time to time;

(j)

"service" means the the Uttar Pradesh Food Safety and Drug Administration Department Analysts (Food And Drug Laboratory) Service;

(k)

"Subordinate Commission" means the Uttar Pradesh Subordinate Services Selection Commission;

(l)

"substantive appointment" means an appointment, not being an ad hoc appointment, on a post in the cadre of the service, made after selection in accordance with the rules and, if there were no rules, in accordance with the procedure prescribed for the time being by executive instructions issued by the Government;

(m)

"year of recruitment" means a period of twelve months commencing on the first day of July of a calendar year.

Part II

Cadre

4.

Cadre of service.

(1)

The strength of the service and of each category of posts therein shall be such as may be determined by the Government from time to time.

(2)

The strength of the service and of each category of posts therein shall, until orders varying the same are passed under sub-rule (1), be as given in Appendix.

Provided that-

(i)

the appointing authority may leave unfilled or the Governor may hold in abeyance any vacant post, without thereby entitling any person to compensation; or

(ii)

the Governor may create such additional permanent or temporary posts as he may consider proper.

Part III

Recruitment

5.

Source of recruitment.

- Recruitment to the various categories of posts in the service shall be made from the following sources:

SECTION I (FOOD AND DRUG)

Joint Commissioner/Chief Government Public Analyst. - By promotion through the Selection Committee from amongst substantively appointed Scientific Officers-1 (Food), and Scientific Officers-I (Drug), who have completed seven years service as such on the first day of the year of recruitment.

SECTION II (FOOD)

(1)

Scientific Officer-1 (Food). - By promotion through the Selection Committee from amongst substantively appointed Scientific Officers-II (Food) who have completed seven years service as such on the first day of the year of recruitment.

(2)

Scientific Officer-II (Food). - By promotion through the Selection Committee from amongst substantively appointed Senior Analysts (Food) and Microbiologists (Food) in the ratio of 70:30 respectively who have completed four years service as such on the first day of the year of recruitment.

(3)

Microbiologist (Food). - By direct recruitment through Commission.

(4)

Senior Analyst (Food). - By promotion through the Selection Committee from amongst substantively appointed Junior Analysts (Food) who have completed five years service as such on the first day of the year of recruitment.

(5)

Junior Analyst (Food). - By direct recruitment through the Subordinate Commission.

SECTION III (DRUG)

(1)

Scientific Officer-I (Drug). - By promotion through the Selection Committee from amongst substantively appointed Scientific Officers-II (Drug) who have completed seven years service as such on the first day of the year of recruitment.

(2)

Scientific Officer-II (Drug). - By promotion through the Selection Committee from amongst substantively appointed Senior Analysts (Drug) who have completed four years service as such on the first day of the year of recruitment.

(3)

Senior Analyst (Drug). - By promotion through the Selection Committee from amongst substantively appointed Junior Analysts (Drug) who have completed five years service as such on first day of the year of recruitment.

(4)

Junior Analyst (Drug). - By direct recruitment through the Subordinate Commission.

6.

Reservation.

- Reservation for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the Act, and the Uttar Pradesh Public Services (Reservation for Physically Handicapped, Dependents of Freedom Fighters and Ex-Servicemen) Act, 1993. as amended from time to time, and the orders of the Government in force at the time of the recruitment.

Part IV

Qualifications

7.

Nationality.

- A candidate for direct recruitment to a post in the Service must be:

(a)

a citizen of India; or

(b)

a Tibetan refugee who came over to India before the 1st January, 1962 with the intention of permanently settling in India; or

(c)

a person of Indian origin who has migrated from Pakistan, Burma, Sri Lanka or any of the East African countries of Kenya, Uganda and the United Republic of Tanzania (formerly Tanganyika and Zanzibar) with the intention of permanently settling in India:

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour a certificate of eligibility has been issued by the State Government:

Provided further that a candidate belonging to category (b) will also be required to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh:

Provided also that if a candidate belongs to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond a period of one year, shall be subject to his acquiring Indian citizenship.

Note. - A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused, may be admitted to an examination or interview and he may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

8.

Academic qualification.

- A candidate for direct recruitment to the various posts in the service must possess the following qualifications.

SECTION I (FOOD)

(1)

Microbiologist (Food). - A Postgraduate Degree in Microbiology from a University established by law in India or a qualification recognised by the Government as equivalent thereto with at least three years of experience of Microbiological testing of Food.

(2)

Junior Analyst (Food). - A Master's Degree in Chemistry or Biochemistry or Microbiology or Dairy Chemistry or Food Technology, Food and Nutrition or Bachelor of Technology in Food/Dairy /Oil or Degree in Veterinary Sciences or equivalent degree from a University established in India by law.

SECTION-II (DRUG)

(3)

Junior Analyst (Drugs). - A Bachelor's Degree in Pharmacy from a University established by law in India or a qualification recognised by the Government as equivalent there to.

9.

Preferential qualification.

- A candidate who has:-

(i)

served in the Territorial Army for a minimum period of two years, or

(ii)

obtained a "B" certificate of National Cadet Corps, shall, other things being equal, be given preference in the matter of direct recruitment.

10.

Age.

- A candidate for direct recruitment must have attained the age of 21 years and must not have attained the age of more than 40 years on the first day of July of the calendar year in which vacancies for direct recruitment are advertised:

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